

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

EDICKSON MARTINEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE KATHY MARTINEZ, Tax No. 927618, SERGEANT BILAL ATES, Tax No. 934429, POLICE OFFICER SCOTT BERGER, Tax No. 948659, DETECTIVE ROBERT SMITH, Tax No. 932219, UNDERCOVER DETECTIVE UC#C0249, POLICE OFFICER LAURANCE LAVERTY, Tax No. 952970, DETECTIVE EMRAH ATES, Tax No. 942967, DETECTIVE ZOLTAN DOBROSSY, Tax No. 934785, POLICE OFFICER JOHN DENORA. Tax No. 951675, DETECTIVE JOHN SALMIERI, Tax No. 904986, and DETECTIVE WASHINGTON MOSQUERA, Tax No. 931838,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
May 26, 2021

Yours, etc.

/s/
JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007,
DETECTIVE KATHY MARTINEZ, Tax No. 927618, Auto Crime Division
SERGEANT BILAL ATEs, Tax No. 934429, Auto Crime Division
POLICE OFFICER SCOTT BERGER, Tax No. 948659, Auto Crime Division
DETECTIVE ROBERT SMITH, Tax No. 932219, Auto Crime Division
UNDERCOVER DETECTIVE UC#C0249, Auto Crime Division
POLICE OFFICER LAURANCE LAVERTY, Tax No. 952970, Auto Crime Division
DETECTIVE EMRAH ATEs, Tax No. 942967, Auto Crime Division
DETECTIVE ZOLTAN DOBROSSY, Tax No. 934785, Auto Crime Division
POLICE OFFICER JOHN DENORA. Tax No. 951675, Auto Crime Division
DETECTIVE JOHN SALMIERI, Tax No. 904986, Auto Crime Division
DETECTIVE WASHINGTON MOSQUERA, Tax No. 931838, Auto Crime Division

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

EDICKSON MARTINEZ,

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, DETECTIVE KATHY MARTINEZ, Tax No. 927618, SERGEANT BILAL ATEs, Tax No. 934429, POLICE OFFICER SCOTT BERGER, Tax No. 948659, DETECTIVE ROBERT SMITH, Tax No. 932219, UNDERCOVER DETECTIVE UC#C0249, POLICE OFFICER LAURANCE LAVERTY, Tax No. 952970, DETECTIVE EMRAH ATEs, Tax No. 942967, DETECTIVE ZOLTAN DOBROSSY, Tax No. 934785, POLICE OFFICER JOHN DENORA. Tax No. 951675, DETECTIVE JOHN SALMIERI, Tax No. 904986, and DETECTIVE WASHINGTON MOSQUERA, Tax No. 931838,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff EDICKSON MARTINEZ, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. The claims arise from an incident that occurred on or about June 4, 2018 at approximately 3:00 p.m., at which time plaintiff was a lawful passenger in a vehicle driven by a friend in the vicinity of 13-39 College Point Blvd, Queens, New York, when the individually named defendant police officers suddenly surrounded the vehicle, broke several of the windows of the vehicle, forcefully and aggressively opened the doors of the vehicle, physically removed plaintiff from the vehicle, assaulted and battered plaintiff and subjected plaintiff to the use of excessive force and dragged plaintiff across the ground, causing plaintiff suffer bruises and cuts all over his body. Thereafter the defendants unlawfully searched plaintiff and the vehicle without probable cause. At no time relevant herein did the defendant police officers recover any illegal drugs, weapons or contraband from plaintiff's possession, custody, or control. At no time relevant herein did the

defendant police officers have probable cause to believe plaintiff committed a crime. Upon information and belief, the defendant officers were targeting another passenger in the vehicle who plaintiff had never met before. Upon information and belief, the officers claimed that they recovered illegal drugs from the possession of the person the defendant officers were targeting. The individual from whom the illegal drugs were recovered immediately advised the police officers that the drugs belonged to him and that nobody else in the vehicle had any knowledge or control over the drugs. Although the defendant officers lacked probable cause to believe plaintiff committed a crime, they proceeded to unlawfully handcuff plaintiff and falsely arrest him. The defendant police officers transported plaintiff against his will to the 109th Precinct whereat plaintiff was unlawfully searched, fingerprinted, photographed, and detained in a holding cell for many hours. Eventually, plaintiff was transported to Manhattan Central Booking whereat the unlawful detention continued until he was arraigned in New York County Criminal Court on June 5, 2018, approximately 24 hours after he was initially arrested and charged with crimes he did not commit and for which the defendants lacked probable cause to accuse him of committing.. Defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process/ right to a fair trial when they communicated false, misleading and/or incomplete evidence to the DA about facts that formed the basis for initiating a criminal prosecution against plaintiff. At no point in time did the officers recover any guns, drugs, or contraband of any kind from plaintiff's possession, custody, or control. Plaintiff was released on his own recognizance at arraignment. Plaintiff was required to appear in Court on approximately 20 occasions before all charges were dismissed on February 26, 2020. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely imprisoned, falsely arrested, illegally seized, maliciously prosecuted, denied the right to due process/ the right to a fair trial, assaulted, battered and subjected to the use of excessive force in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff EDICKSON MARTINEZ is a resident of the state of New York.
3. Defendant DETECTIVE KATHY MARTINEZ, Tax No. 927618, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant DETECTIVE KATHY MARTINEZ, Tax No. 927618, is and was at all times relevant herein, assigned to the Auto Crimes Unit.
5. Defendant DETECTIVE KATHY MARTINEZ, Tax No. 927618, is being sued in his individual and official capacity.

6. Defendant SERGEANT BILAL ATEs, Tax No. 934429, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant SERGEANT BILAL ATEs, Tax No. 934429, was at all times relevant herein, assigned to the Auto Crimes Unit.

8. Defendant SERGEANT BILAL ATEs, Tax No. 934429, is being sued in his individual and official capacity.

9. Defendant POLICE OFFICER SCOTT BERGER, Tax No. 948659, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant POLICE OFFICER SCOTT BERGER, Tax No. 948659, is and was at all times relevant herein, assigned to the Auto Crimes Unit

11. Defendant POLICE OFFICER SCOTT BERGER, Tax No. 948659, is being sued in his individual and official capacity.

12. Defendant DETECTIVE ROBERT SMITH, Tax No. 932219, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant DETECTIVE ROBERT SMITH, Tax No. 932219, was at all times relevant herein, assigned to the Auto Crimes Unit.

14. Defendant DETECTIVE ROBERT SMITH, Tax No. 932219, is being sued in his individual and official capacity.

15. Defendant UNDERCOVER DETECTIVE UC#C0249, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant UNDERCOVER DETECTIVE UC#C0249, was at all times relevant herein, assigned to the Auto Crimes Unit.

17. Defendant UNDERCOVER DETECTIVE UC#C0249, is being sued in his individual and official capacity.

18. Defendant POLICE OFFICER LAURANCE LAVERTY, Tax No. 952970, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant POLICE OFFICER LAURANCE LAVERTY, Tax No. 952970, was at all times relevant herein, assigned to the Auto Crimes Unit.

20. Defendant POLICE OFFICER LAURANCE LAVERTY, Tax No. 952970, is being sued in his individual and official capacity.

21. Defendant DETECTIVE EMRAH ATES, Tax No. 942967, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. Defendant DETECTIVE EMRAH ATES, Tax No. 942967, was at all times relevant herein, assigned to the Auto Crimes Unit.

23. Defendant DETECTIVE EMRAH ATES, Tax No. 942967, is being sued in his individual and official capacity.

24. Defendant DETECTIVE ZOLTAN DOBROSSY, Tax No. 934785, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

25. Defendant DETECTIVE ZOLTAN DOBROSSY, Tax No. 934785, was at all times relevant herein, assigned to the Auto Crimes Unit.

26. Defendant DETECTIVE ZOLTAN DOBROSSY, Tax No. 934785, is being sued in his individual and official capacity.

27. Defendant POLICE OFFICER JOHN DENORA. Tax No. 951675, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

28. Defendant POLICE OFFICER JOHN DENORA. Tax No. 951675, was at all times relevant herein, assigned to the Auto Crimes Unit.

29. Defendant POLICE OFFICER JOHN DENORA. Tax No. 951675, is being sued in his individual and official capacity.

30. Defendant DETECTIVE JOHN SALMIERI, Tax No. 904986, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

31. Defendant DETECTIVE JOHN SALMIERI, Tax No. 904986, was at all times relevant herein, assigned to the Auto Crimes Unit.

32. Defendant DETECTIVE JOHN SALMIERI, Tax No. 904986, is being sued in his individual and official capacity.

33. Defendant DETECTIVE WASHINGTON MOSQUERA, Tax No. 931838, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

34. Defendant DETECTIVE WASHINGTON MOSQUERA, Tax No. 931838, was at all times relevant herein, assigned to the Auto Crimes Unit.

35. Defendant DETECTIVE WASHINGTON MOSQUERA, Tax No. 931838, is being sued in his individual and official capacity

36. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

37. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

38. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK and also attended a 50-h Hearing on September 21, 2020 in compliance with the Municipal Law Section 50.

39. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

40. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

41. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

42. On or about June 4, 2018 at approximately 1:00 pm plaintiff got into his friend's vehicle in the Bronx and intended to go with his friend to the car wash.

43. As plaintiff's friend was driving to the car wash he received a telephone call from a man that plaintiff had never met, and the man asked plaintiff's friend if he could give him a ride to Queens because he needed to meet up with a friend in Queens.

44. Plaintiff's friend agreed to give the man a ride to Queens.

45. Plaintiff's friend picked up the man in the Bronx and drove the man to Queens while plaintiff was a passenger in his friend's vehicle.

46. On or about June 4, 2018 at approximately 3:00 p.m., plaintiff was a lawful passenger in his friend's vehicle at which time they arrived at the location where the man asked plaintiff's friend to drop him off which was in the vicinity of 13-39 College Point Blvd, Queens, New York.

47. When plaintiff's friend pulled his vehicle into the parking lot where the man asked to be dropped off, the individually named defendant police officers suddenly surrounded the vehicle, broke several of the windows of the vehicle, forcefully and aggressively opened the doors of the vehicle, and physically removed plaintiff and the other occupants of the vehicle from the vehicle.

48. The defendant police officers assaulted and battered plaintiff and subjected plaintiff to the use of excessive force by dragging plaintiff across the ground, causing plaintiff suffer bruises and cuts all over his body.

49. Thereafter the defendants unlawfully searched plaintiff and the vehicle without probable cause or legal justification.

50. At no time relevant herein did the defendant police officers recover any illegal drugs, weapons or contraband from plaintiff's possession, custody, or control.

51. At no time relevant herein did the defendant police officers have probable cause to believe plaintiff committed a crime.

52. Upon information and belief, the defendant officers were targeting the man who asked plaintiff's friend to drive him to the location.

53. Upon information and belief, the officers claimed that they recovered illegal drugs from the possession of the man the defendant officers were targeting.

54. The individual from whom the illegal drugs were recovered immediately advised the police officers that the drugs belonged to him and that nobody else in the vehicle had any knowledge or control over the drugs.

55. Although the defendant officers lacked probable cause to believe plaintiff committed a crime, they proceeded to unlawfully handcuff plaintiff and falsely arrested him.

56. The defendant police officers transported plaintiff against his will to the 109th Precinct whereat plaintiff was unlawfully searched, fingerprinted, photographed, and detained in a holding cell for many hours.

57. Eventually, plaintiff was transported to Manhattan Central Booking whereat the unlawful detention continued until he was arraigned in New York County Criminal Court on

June 5, 2018, approximately 24 hours after he was initially arrested and charged with crimes he did not commit and for which the defendants lacked probable cause to accuse him of committing.

58. Defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process/ right to a fair trial when they communicated false, misleading and/or incomplete evidence to the DA about facts that formed the basis for initiating a criminal prosecution against plaintiff.

59. At no point in time did the officers recover any guns, drugs, or contraband of any kind from plaintiff's possession, custody, or control.

60. Plaintiff was released from custody on his own recognizance at arraignment.

61. Plaintiff was required to appear in Court on approximately 20 occasions before all charges were dismissed and sealed in their entirety on February 26, 2020.

62. At no time relevant herein did the defendants recover any illegal drugs, weapons or contraband from plaintiff's possession, custody, or control.

63. At no time relevant herein did defendants possess an objective basis to reasonably believe plaintiff committed a crime or violated the law in any way and they lacked probable cause to arrest plaintiff.

64. At no time relevant herein did plaintiff commit a crime or violate the law in any way.

65. At no time relevant herein did defendants possess objective facts that would establish probable cause to arrest plaintiff.

66. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

67. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely imprisoned, falsely arrested, illegally seized, maliciously prosecuted, denied the right to due process/ the right to a fair trial, assaulted, battered and subjected to the use of excessive force in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

68. The unlawful stop, questioning, frisk, search, false imprisonment, false arrest, illegal seizure, malicious prosecution, denial of the right to due process/ the right to a fair trial, assault battery and the use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, economic, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's First, Fourth Amendment, and Fourteenth Amendment Rights

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The individually named police officer defendants while acting in concert and within the scope of their authority unlawfully stopped, questioned, frisked, searched plaintiff, caused plaintiff to be unlawfully seized, falsely arrested, falsely imprisoned, maliciously prosecuted and denied the right to a fair trial without probable cause, in violation of plaintiff's right to be free of an unreasonable search and seizure and denial of the right to due process pursuant to the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty pursuant to the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

73. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

76. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

77. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

79. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

80. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

83. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

84. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. The illegal search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

86. Defendants lacked probable cause to search plaintiff.

87. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

89. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and the United States Constitution.

93. Defendants commenced and continued a criminal proceeding against plaintiff.

94. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

95. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

96. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

97. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.\

98. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

99. The City of New York, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

100. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION**Violation of Plaintiff's Fifth Amendment Right to Due Process/
Right to a Fair Trial**

101. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 100 with the same force and effect as if fully set forth herein.

102. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Manhattan Special Prosecutor's Office.

103. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Manhattan Special Prosecutor's Office.

104. Defendants signed a false and misleading Summons and forwarded it to prosecutors in the Manhattan Special Prosecutor's Office.

105. In withholding/creating false evidence against plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

106. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation and deprivation of his constitutional rights.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

108. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment

Rights: Excessive Force

109. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. The use of excessive force by defendants by aggressively and forcefully pulling plaintiff out of the vehicle and then dragging plaintiff across the ground plaintiff was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

111. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

EIGHTH CAUSE OF ACTION

Failure to Intervene

112. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 111 with the same force and effect as if more fully set forth at length herein.

113. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

114. Defendants failed to intervene to prevent the unlawful conduct described herein.

115. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

116. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

117. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

118. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 117 with the same force and effect as if more fully set forth at length herein.

119. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

TENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

120. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 119 with the same force and effect as if more fully set forth at length herein.

121. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

122. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

123. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

124. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Edickson Martinez demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages, costs, and reasonable attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 26, 2021

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 26, 2021

/s/

DAVID M. HAZAN